

consolidation would delay the trial of any of the cases involved; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e, whether consolidation would adversely affect the rights of any party. See *State Farm Mut. Auto. Ins. Co. v. Superior Court* (1956) 47 Cal.2d 428, 430–431.

Here, because both CU0002314 and CU0002605 arise out of the same occurrence, involve the same defendants, and involve common questions of fact and law, and because no party opposes the motion, the Court finds consolidation is in the interest of justice and GRANTS the motion.

CU0002314 shall be the lead case. All future filings shall be in that case with captions noting both case numbers and the fact of consolidation. No further filings shall be made in CU0002605.

7. CU0002636 John Lascoe et al vs. Selene Finance LP et al

Attorney John S. Sargetis’ unopposed motion to be relieved as counsel is granted. The order relieving counsel will be deemed effective upon the filing of a proof of service with the Court evidencing both plaintiffs have been served with the order. See California Rules of Court, Rule 3.1362(e).

8. CU0002801 In the Matter of Irina Naduhovskaya

No appearance required. Petitioner is directed to correct the issues below forthwith. The matter is continued to August 24, 2026 at 1:30 p.m. in Dept. A.

- There is no request or order appointing a guardian ad litem in this matter.
- The Petition is illegible due to either how it was scanned or the copy quality of what was filed.
- 5 describes that the minor was struck by the vehicle in the incident, whereas the medical notes state the minor was not struck, but rather her bicycle was struck causing the minor to fall.
- Issues with the Medical Expenses and Net Settlement Amount:
 - 12.a: states medical expenses paid in the amount of \$3,261.58, including \$2,631.87 paid by petitioner, and \$989.71 by private health insurance. This totals \$3,621.58. Correct the total amount paid in 12.a(2).
 - 12.b(f)(ii): states reimbursement is to be made to the plan in the amount of \$989.71.
 - 12.b(5)(b)(D): correct the amount paid as described above.
 - 14.b(1): does not include all medical expenses because it omits the \$989.71 to be reimbursed.
 - 15 and 16: includes the medical expense \$989.71 but omits the medical expense of \$2,631.87 paid by petitioner.
- Attachment 17a: the retainer agreement is attached but not labeled.

The Court also notes a Request for Dismissal was filed on June 30, 2026 stating “dismissal subject to proof of deposit into blocked account.” However, “At no time has this court approved any minor’s compromise in this matter. Such approval is a prerequisite to a valid settlement.”

Anderson v. Latimer (1985) 166 Cal.App.3d 667, 676. “Nor is the settlement binding [on the minor] until it is endorsed by the trial court.” *Perason v. Superior Court* (2012) 202 Cal.App.4th 1333, 1338. This court has not approved a minor’s compromise, and therefore, there is no valid settlement of the claims. Moreover, there is no pending action to be dismissed. This case arising from the filing of a Petition which will either be approved or not. There is nothing to be dismissed even upon approval of the Petition.

9. FL0001988 Berber, Victoria Saldana v. Rodriguez, Jorge Aron Diaz

No appearance required. A Judgment was filed in this matter on July 29, 2026. Pursuant to the language of the OSC, the OSC would vacate provided a Judgment was approved and filed prior to the date of the OSC. Accordingly and on the Court’s own motion, the OSC is dismissed.

August 10, 2026 Truckee Probate Tentative Rulings

1. PR0000554 In Re Rogers, Auctaviah Marie Davis

Petitioners are directed to file an amended petition including their signatures prior to the hearing on the motion. Otherwise, the Court is inclined to grant the unopposed petition to fix the residence of the minors outside the state of California and direct the guardians to commence a guardianship in the appropriate court in Benson, Arizona.

2. PR0000750 In the Matter of Melilah A Schuch Living Trust

The motion to be relieved as attorney of record is granted. Counsel for beneficiary Mario Albert Hernandez shall file a Proposed Order on form MC-053 as required by California Rules of Court, rule 3.1362(e). Attorney Capdevielle shall be deemed relieved as attorney of record for Mario Albert Hernandez upon the filing of a proof of service of the filed order on his client.

Legal Standard

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. Code of Civ. Proc., § 284(b). An attorney is permitted to withdraw where conflicts between the attorney and client make it unreasonable to continue the representation. See Cal. Rules of Prof. Conduct 3-700(C)(1). “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1133.

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). Further, the requisite forms must be served on the client and all other parties who have appeared in the case. Cal. Rules of Court, rule 3.1362(d). The court may delay effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).